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25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL.

LINE 7

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

PLAINTIFF: JOSH RAFFAELLI'S AMENDED NOTICE OF MOTION TO COMPEL PRODUCTION OF WITNESSES FOR DEPOSITION AND DEFENDANTS MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

This tentative addresses both line 7 and line 9 of this Calendar. Plaintiff Josh Raffaelli ("Plaintiff") moves to compel the depositions of Defendants Anuj Ranjan and Nicholas Sammut (collectively, "Defendants"). Defendants move for a protective order staying their depositions until certain recordings and transcripts in Plaintiff's possession are produced.

Defendants' motion for a protective order is GRANTED.

Plaintiff's motion to compel is DENIED in light of the issuance of the protective order but the Court would consider (and believes there would be good cause) setting an expedited schedule at hearing on July 13, 2026 for these depositions, consistent with the protective order, if the Plaintiff wishes and timely notices an intention to appear. It is unclear to the Court if Plaintiff will continue to pursue expedited deposition(s) if this Order becomes final.

Background

Plaintiff was formerly Managing Director of Brookfield's Venture Capital ("VC") group. (TAC, ¶¶ 1, 40.) It is alleged that Defendant claimed that on November 14, 2024, Defendant Ranjan informed Plaintiff during a call that Brookfield had decided to transition management of the funds elsewhere, and that Plaintiff's employment would be terminated. (Id., at ¶¶ 12, 150.)

The parties apparently hotly dispute statements made during a phone call November 14, 2024. Plaintiff claims that Mr. Ranjan did not inform him of his impending termination during that call and that Brookfield allegedly did not decide to terminate Plaintiff's employment until after November 22, 2024, the date he informed Brookfield that he had filed a purported whistleblower complaint with the Securities and Exchange Commission. (Id., ¶¶ 12, 155.) Defendants apparently claim that Mr. Ranjan informed Plaintiff of the decision to terminate during the November 14, 2024 call. (Oppo., 8:4-6.)

Plaintiff recorded the November 14, 2024 call and is in possession of the recording and a transcript of that conversation, as well as other conversations with his colleagues. (Reilly Decl., ¶ 2.) Defendants do not have possession of the recordings or the transcripts. (Id.)

Defendant made multiple demands to Plaintiff to provide the November 14, 2024 recording, and any other recordings, before Plaintiff filed this action. (Reilly Decl., ¶ 3.) Plaintiff filed this action on May 8, 2025. On July 25, 2025, Defendants' counsel demanded in writing that Plaintiff's counsel produce by

August 11, 2025 all recordings (and any transcripts of recordings) of communications with Plaintiff's Brookfield colleagues that are in Plaintiff's possession, custody, or control. (Id., ¶ 4.) On August 8, 2025, Plaintiff's counsel refused to produce any of the recordings or transcripts and stated that if Defendants "want copies of any recordings – or any documents bearing on the dispute – you are certainly free to serve a request for production when discovery opens in the matter." (Id.)

From June 6, 2025 through November 12, 2025, proceedings in this action were stayed while the parties litigated Defendants' removal of the case to federal court and Plaintiff's motion to amend the complaint and remand the case to state court. (Id., at ¶ 5.) Plaintiff filed the SAC on November 17, 2025. Shortly thereafter, Plaintiff told Defendant that a third amended complaint would be filed in December – an expectation that was later pushed back to January. (Id., at ¶ 7.) Believing the filing of a TAC was imminent, Plaintiff waited to serve discovery requests so that they could be tailored to the TAC. (Id., at ¶ 8.) However, on January 22, 2026, before the TAC was filed, Plaintiff served a notice of deposition for Mr. Ranjun. (Id., at ¶ 11.) On February 9, 2026, Defendants served Plaintiff with their RFP1, which included a request for all recordings and transcripts related to Plaintiff's termination from Brookfield Asset Management, including the recordings and transcripts of the November 14, 2024 call between Plaintiff and Mr. Ranjan. (Id., at ¶ 12.)

On February 19, Defendant Ranjan served his responses and objections to the deposition notice and document requests. (Lander Decl., Ex. 3.) Defendant argued that Plaintiff must produce all recordings and transcripts of conversations involving Defendant Ranjan before the deposition. (Id.) On March 3, 2026, Plaintiff served a deposition notice and documents requests on Defendant Sammut. (Id., at Ex. 4.) On March 12, 2026, Defendant Sammut served his objections to the deposition notice. (Id., at Ex. 5.)

After several attempts to meet and confer to resolve their disagreements, the parties participated in an Informal Discovery Conference ("IDC"). (Lander Decl., ¶¶ 11-12.) The parties did not come to an agreement.

Discussion

Defendants argue that under California law, a party cannot leverage exclusive access to recordings of a deponent's own statements to manufacture impeachment opportunities or secure an unfair tactical advantage. (Oppo., 15:17.) Defendants argue that where a party possesses recorded conversations with a deponent, California courts have uniformly found good cause to require production of the recordings before the deposition. Therefore, the ordinary sequencing of discovery should not control and the Court should enter a protective order staying Defendants' depositions and requiring Plaintiff produce the subject recordings and transcripts prior to Defendants' depositions.

Plaintiff argues that there is no legal basis to precondition Defendants' depositions on the production of the subject recordings and transcripts prior to those depositions. Plaintiff argues that the sequence of propounded discovery controls and, therefore, Defendant Ranjan should be deposed before Plaintiff is required to produce the subject recordings and transcripts.

Under California law, a court may issue a protective order related to a deposition upon a showing of good cause. (Code Civ. Proc., § 2025.420, subd. (a).) The statute authorizes a court, "for good cause shown," to make "any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," including that a deposition be stayed, delayed, or conditioned. (Code Civ. Proc., §§ 2025.420, subd. (b)(1) (2), (5).)

Good cause for a protective order can exist when the noticing party refuses to produce recordings of the deponent's statements prior to the deposition. (*Rosemont v. Superior Court* (1964) 60 Cal.2d 709, 712, 714-15 [affirming trial court's order requiring plaintiff to produce recordings of defendants' communications prior to the depositions]; *Poeschl v. Superior Court* (1964) 229 Cal.App.2d 383, 386-87 [reversing trial court and directing it to order plaintiff to produce recorded conversations before taking defendant's deposition].)

The parties appear to agree (at least implicitly) that this is a discretionary decision. Plaintiff Reply at n. 5; Defendants Opposition at 12. While both parties make reasonable arguments, the Court concludes that there is good cause to require Plaintiff to produce the recording(s) prior to the depositions and exercises its discretion to so order. Plaintiff is right that "discovery proceedings can seldom if ever be conducted simultaneously, it is inherent in such proceedings that the party who secures discovery first may derive advantages by securing information from his adversary before he is required to reciprocate by divulging information to him. Parties should be encouraged to expedite discovery and should not needlessly be deprived of the advantages that normally flow from prompt action. Accordingly, the existence of such advantages alone will ordinarily not constitute good cause for changing the normal timing of discovery or justify a conclusion that such timing will result in 'annoyance, embarrassment, or oppression.'" *Rosemont*, 60 Cal.2d at 714. And Plaintiff is and was well within his rights to seek an early deposition(s). But the Defendants are right that Plaintiff "is not seeking merely the advantages that would flow from the normal timing of discovery. He is [effectively] seeking the advantages that would flow from his being able to refresh his recollection from the recordings before giving his deposition while denying [Defendant] equal opportunity to refresh [his] recollection[] before giving [his] deposition[]." *Id.* While Plaintiff contends that he has not reviewed the transcript for some time, that does not mean that he could not or would not refresh his memory before his deposition. Further, the Court believes the Defendants acted with reasonable diligence to obtain the recording(s)/transcript(s) prior to the deposition and credits counsel's declaration that Defendants sought the recording(s)/transcript(s) repeatedly and delayed serving formal discovery because of the then pending Third Amended Complaint.

Accordingly, the Court GRANTS Defendants' motion for a protective order requiring that Plaintiff produce the recordings and transcripts **not less than** ten calendar days prior to taking Defendants' depositions.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Defendants shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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LINE 8

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MARK MERMELSTEIN
JOSH A. COHEN

DEFENDANTS' DEMURRER TO PLAINTIFF'S THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendants' Demurrer to Plaintiff's Third Amended Complaint ("TAC") is OVERRULED, except as to the the Twelfth Cause of Action for Civil Theft Under Cal. Penal Code Section 496, which is SUSTAINED WITH LEAVE TO AMEND pursuant to Code Civ. Proc. Section 430.10 subd. (e), for the reasons described below.

Defendants' Request for Judicial Notice is GRANTED pursuant to Evidence Code Section 452 subd. (h).

The term "Brookfield is used in Plaintiff Josh Raffaelli's Third Amended Complaint ("TAC") to collectively refer to BROOKFIELD ASSET MANAGEMENT LLC, a Delaware limited liability company, BROOKFIELD ASSET MANAGEMENT LTD., a Canadian corporation, BROOKFIELD CORPORATION, a Canadian corporation, BROOKFIELD BUSINESS PARTNERS L.P., a Bermuda limited partnership, BROOKFIELD TECHNOLOGY PARTNERS II OFFICER GP LLC, a Delaware limited liability company, BROOKFIELD TECHNOLOGY GROWTH PARTNERS III OFFICER GP LLC, a Delaware limited liability company, BROOKFIELD TECHNOLOGY GROWTH PARTNERS III ANNEX GP L.P., a Delaware limited partnership, and BROOKFIELD CORPORATE TREASURY LTD., a Canadian corporation. (TAC, at p. 3:2-10.) BROOKFIELD ASSET MANAGEMENT LTD. ("BAM") is a Canadian corporation. (TAC, ¶16.)

"On or about October 5, 2024, Raffaelli filed an anonymous complaint within Brookfield internal whistleblowing platform, in keeping with Brookfield's Whistleblowing policy." (Id., ¶145.) Then, "...on November 1, 2024, Raffaelli filed a whistleblower complaint with the Securities and Exchange Commission ("SEC")." (Id., at ¶147.) Plaintiff alleges that Brookfield then offered him "a present-day payout of his projected carried interest [in the amount of \$46 million], at no market risk and no present value discount, if he would only agree to lie to their investors (and his clients) about why moving Funds 2 and 3 to Pinegrove was a good idea." (Id., at ¶151.)

Plaintiff informed BAM's counsel on November 22, 2024 that he had filed a whistleblower complaint with the SEC. (Id., at ¶155.) Plaintiff received an email on December 1, 2024 stating that "the firm has decided to effectuate now the termination of your employment in connection with the Pinegrove transaction...effective as of Monday, December 2, 2024." (Id., at ¶170.)

Third Cause of Action for Unfair Business Practices
